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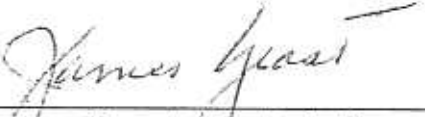
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	
	)	DIA NO. 99DPHSW002
	)	
CHARLES L. KORANDA	)	ERRATA ORDER
	)	

The Findings of Fact, Conclusions of Law, Decision and Order, issued by the Board on December 15, 1999, contained a clerical error which should be corrected.

IT IS THEREFORE ORDERED, that the Findings of Fact, Conclusions of Law, Decision and Order of the Board in the above-captioned case shall be modified to delete the third sentence of Finding of Fact 11, which is found on page 6. The sentence which is hereby deleted from the decision is "Such transactions create a dual relationship and have a negative effect on the social worker-client relationship."

Dated this 27th day of December, 1999.



James Yeast, L.M.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

1999

BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	DIA NO. 99DPHSW002
	)	
	)	FINDINGS OF FACT,
CHARLES L. KORANDA	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On January 11, 1999, the Iowa Board of Social Work Examiners (Board) filed a Statement of Charges against Charles L. Koranda (Respondent) alleging that he had violated Iowa Code section 147.55(3) and 645 IAC 280.212(3), by engaging in unethical conduct in the practice of social work (Count I) and 645 IAC 280.213(3) "f", by exercising undue influence on a patient or client (Count II). The Statement of Charges also alleged that the Respondent violated 645 IAC 280.212(14) "b" by practicing social work outside the scope of his license (Count III). A hearing was scheduled for February 22, 1999. Several continuances were granted.

The hearing was held on September 20 and September 21, 1999 in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The Respondent appeared and was represented by his counsel, Stuart G. Hoover. The state of Iowa was represented by Heather Adams, Assistant Attorney General. The following members of the Board were present for the hearing: James Yeast, L.M.S.W., Chairperson; Mark Smith, L.I.S.W.; Janice McCoy, L.B.S.W.; Erlene Veverka and Monsignor Robert Schmidt, Public Members. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, assisted the Board in conducting the hearing. The hearing was closed to the public, at the Respondent's request, pursuant to Iowa Code section 272C.6(1).

The Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(1999), on October 11, 1999, to deliberate its decision. The administrative law judge was instructed to prepare the written decision of the Board, in conformance with the deliberations.

THE RECORD

The record includes the Statement of Charges, Notice of Hearing, Continuance Orders, Orders Rescheduling the Hearing, the testimony of the witnesses, and the following exhibits:

State Exhibit A:	Complaint form, 8/18/98
State Exhibit B:	Investigative Report and Interviews, 11/10/98
State Exhibit C:	Alternative Services records, SP, 6/20/97-5/3/98
State Exhibit D:	Alternative Services records, CP, 5/1/98-5/15/98
State Exhibit E:	Case Facilitation Notes, 1/30/98;4/24/98

State Exhibit F:	Hubbard Memorandum, 5/20/98
State Exhibit G:	Dubuque Police Department, Initial Report, 5/20/98
State Exhibit H:	Dubuque Police Department, Supplementary Report, 5/20/98
State Exhibit I:	Dubuque Police Department, Supplementary Report, 5/20/98
State Exhibit J:	Dubuque Police Department, Property in Custody
State Exhibit K:	Sears Letter, 5/21/98
State Exhibit L:	Application for Search Warrant, Search Warrant, 5/21/98
State Exhibit M:	Dubuque Police Department, Supplementary Report, Search Warrant
State Exhibit N:	Dubuque Police Department, Supplementary Report, 5/22/98
State Exhibit O:	Dubuque Police Department, Supplementary Report, 5/24/98
State Exhibit P:	Dubuque Police Department, Supplementary Report, 5/25/98
State Exhibit Q:	Dubuque Police Department, Supplementary Report, 5/29/98
State Exhibit R:	Dubuque Police Department, Supplementary Report, 5/29/98
State Exhibit S:	Dubuque Police Department, Supplementary Report, 6/3/98
State Exhibit T:	Dubuque Police Department, Supplementary Report, 6/12/98
State Exhibit U:	Dubuque Police Department, Supplementary Report, 6/12/98
State Exhibit V:	Dubuque Police Department, Supplementary Report, 6/26/98
State Exhibit W:	Dubuque Police Department, Supplementary Report, 7/10/98
State Exhibit X:	Memo, (Routley to Judge Mylrea), 6/2/98
State Exhibit Y:	Audio Tape and Transcript, transcribed 9/22/98
State Exhibit Z:	Audio Tape and Transcript, transcribed 9/23/98
State Exhibit AA:	Audio Tape and Transcript, transcribed 9/24/98
State Exhibit BB:	Audio Tape and Transcript, transcribed 9/24/98
State Exhibit CC:	Memo (Routley to Behavioral Science Examiners) 12/5/98
State Exhibit DD:	Alternative Services, Work Rules and Policies
State Exhibit EE:	Alternative Services, Disclosure of Information, 4/2/96
State Exhibit FF:	Record Check Evaluation, 4/29/96
State Exhibit GG:	Termination Letter, 7/22/98

State Exhibit HH: Criminal History Information, Respondent, State of Florida
State Exhibit II: Additional Information from Dubuque Police Department, Supplemental Reports
State Exhibit OO: Fee Information and Resume
State Exhibit PP: Curriculum Vitae, John Fandrick, L.I.S.W.
State Exhibit QQ: Additional Dubuque Police Department Records
State Exhibit RR: TB, Criminal History
State Exhibit SS: Respondent, Iowa Criminal History
State Exhibit TT: LT, Criminal History
State Exhibit UU: Respondent Application for Licensure File

Respondent Exhibit 1: Respondent's Canceled Check, \$105.00
Respondent Exhibit 2: Younkers receipt, 1/21/98
Respondent Exhibit 3: TB Deposition
Respondent Exhibit 4: CP Deposition
Respondent Exhibit 5: SP Deposition
Respondent Exhibit 6: Younkers Merchandise Redemption Receipt
Respondent Exhibit 7: Menards receipt, 5/20/98
Respondent Exhibit 8: Steve Sprengelmeyer Cover Letter and Credentials
Respondent Exhibit 9: Deposition of Wanda Hubbard
Respondent Exhibit 10: Nine photographs
Respondent Exhibit 11: LT Deposition

FINDINGS OF FACT

1. On August 6, 1996, the Respondent was issued license number 304-01248 by the Board to practice as a bachelor social worker, subject to the laws of the state of Iowa and the rules of the Board. The Respondent had answered no to the question on his license application, "Have you ever been convicted of a felony?" (Testimony of Respondent; State Exhibit UU)
2. In fact, the Respondent had a significant criminal history in the state of Florida, where he had resided for fifteen years. This criminal history included numerous arrests, several misdemeanor convictions, and a 1986 felony conviction for Aggravated Assault. The Respondent also had convictions for OWI, Criminal Mischief and Resisting Arrest. The Respondent had outstanding warrants in Florida. (Testimony of Rudy Vasquez; Respondent; State Exhibits B, HH)
3. According to the Respondent, he had a lot of problems as a result of his military service in Viet Nam and his first divorce. These problems led to a lot of drinking, fights, and quite a few arrests. The Respondent testified that all of his convictions were related to his alcoholism. The Respondent went into treatment for his alcoholism in Independence, Iowa in 1987. After he was in

recovery, he became certified and worked for several years as a substance abuse counselor. (Testimony of Respondent; State Exhibit OO)

4. In August 1991, the Respondent became a therapeutic foster parent with a licensed pre-adoptive home. In 1996, the Respondent completed his bachelor's degree in social work. In October 1997, the Respondent and his wife adopted four young special needs children. (Testimony of Respondent; Steven Sprengelmeyer; State Exhibit OO)

5. From May 1996-July 1998, the Respondent was employed by Alternative Services, Inc., as a community caseworker and family therapist providing intervention, supervision, support, and counseling to clients in community services program and in-home family counseling. In July 1998, the Respondent was terminated from this position due to his failure to reveal his criminal history on his job application. (Testimony of Respondent; State Exhibits EE, FF, GG, UU)

6. In approximately June 1997, the Respondent was contacted by Wanda Hubbard, a Dubuque juvenile court officer. Ms. Hubbard was responsible for working closely with the county attorney on both formal and informal dispositions of juvenile court matters and for arranging for services for juvenile offenders.

a) In May 1996, Ms. Hubbard had referred SP, a twelve year old against whom a 5th Degree Theft (shoplifting) charge had been filed, to Alternative Services. However, the family was not happy with the caseworker that had been assigned to SP. Ms. Hubbard had assessed the needs of SP and his status in school. SP, his mother (TB), and his sister (CP) had all been diagnosed with Post Traumatic Stress Disorder. TB was not employed and all three received Social Security payments.

b) Ms. Hubbard was aware that the Respondent was also diagnosed with Post Traumatic Stress Disorder due to his experience in Viet Nam, and she believed that he would be effective in working with SP and his family. The Respondent met with Ms. Hubbard, SP, and TB, and they all agreed that the Respondent would provide in home supervision, intervention, and services to SP. The intention was that the Respondent would serve as a mentor for SP and help him cope with school issues, problems at home, and anger management.

(Testimony of Wanda Hubbard; TB; Respondent; State Exhibit C)

7. Prior to the Respondent's involvement with SP, SP had had juvenile complaints filed against him for disorderly conduct, theft-5th degree (shoplifting), and two assaults with injury. After being assigned as the caseworker, the Respondent visited SP

in his home on almost a daily basis. The Respondent was also available by cell phone to respond to problems or emergencies. The Respondent was often called to SP's school and home for crisis intervention. The crises at home often involved arguments between SP and his mother. The Respondent frequently took SP to lunch. (Testimony of Wanda Hubbard; Respondent; TB)

8. SP had additional juvenile complaints filed against him in June 1997, October 1997, December 1997, and January 1998. These included Criminal Mischief, Assault With Injury, and Theft-4th Degree. There were additional problems at school for both SP and CP. CP suffered some brain damage from a head injury. CP also had some informal juvenile referrals for assault and Theft-5th Degree.

a) A case facilitation team was assembled to focus on various issues facing the family. The case facilitation team included TB, the Respondent, Wanda Hubbard, and various education and social service professionals.

b) On January 30, 1998, a case facilitation was held to discuss an educational plan for SP and CP. The team decided that the most appropriate, least restrictive option was for home schooling with support from the Dubuque Community School District, which would provide materials, organization of lessons, monitor progress, and grading. The Respondent and his wife were designated as mentors for SP and CP, respectively. The team also discussed the importance of clear boundaries for the children and a safe environment. SP's mother expressed concern about his drug use.

(Testimony of Wanda Hubbard; Respondent; TB; State Exhibit E)

9. On March 10, 1998, the Respondent purchased a laptop word processor from TB, the mother of SP. The Respondent and TB disagree on the circumstances leading up to the purchase. The Respondent admits that he negotiated a price of \$105.00 for the computer, which he described as "not brand new." In fact, SP had stolen the word processor from Sears in January 1998. It was a display model and sold for \$299.99. Also stolen at the same time were two battery packs, with a value of \$59.99. The Respondent wrote a check to TB for the computer. The Respondent made no reference in his case notes for SP that he had made this purchase from the family. (Testimony of TB; Respondent; State Exhibits C, K, Respondent Exhibit 1)

10. The Respondent also admits that his wife bought a number of baby items and some candles from TB and CP. Some of the items were paid for with a check for approximately \$79.00; other items were paid for with small amounts of cash. None of these purchases were documented in the Respondent's case notes. The Respondent saw CP as a client in May 1998. According to the Respondent, he began

seeing CP as a client because SP had run out of units that could be billed by Alternative Services and this enabled him to remain involved with the family. (Testimony of Respondent; State Exhibits C, D)

11. Purchasing items from a client or client's family while providing services raise ethical issues about the social worker exercising undue influence on the client. Such transactions create a dual relationship and have a potentially negative effect on the social worker-client relationship. Such transactions create a dual relationship and have a negative effect on the social worker-client relationship. If the social worker felt the purchase was justified to "help out" the family, at the very least the supervisor should be consulted and the purchase and the rationale behind it should be fully documented in the case notes. If the social worker knows or suspects that the purchased items were stolen, the ethical violation is compounded. The social worker is then joining in criminal activity and reinforcing the client's problems rather than alleviating them. Directing a client to steal items is illegal and is an extremely severe ethical violation involving abuse of authority and influence. Purchasing items from clients also violated the Work Rules and Policies at Alternative Services. (Testimony of John Fandrich; Steven Sprengelmeyer; State Exhibits DD, PP)

12. The Respondent and TB gave vastly different accounts of the relationship between them and the circumstances of the purchases made by the Respondent and his wife. For a number of reasons which are apparent in this record, the Board has concluded that neither the Respondent nor TB were entirely credible. The following is a brief summary of their testimony.

a) TB testified that she was extremely angry with the Respondent because he had instructed SP to steal the computer for him. According to TB, she had suspected that the Respondent was asking her children to steal for him for some time, but her discovery of the stolen computer was her first confirmation of it. According to TB, the Respondent threatened to remove her children from her home if they did not continue to shoplift things for him and his wife. TB testified that she initially cooperated with the Respondent because she was terrified that he would remove her children from her home.

According to TB, both the Respondent and his wife gave lists of specific items which they wanted the children to shoplift. These included cigarettes, children's items, pet items, adult clothing, art objects and collectibles, cologne and makeup. According to TB, some of the items were difficult or impossible to steal because of the security surrounding them. Fearful that her children would be arrested for shoplifting, TB testified that she assisted them in obtaining some of the

items, either by serving as a lookout or by purchasing the items herself. (Testimony of TB)

b) The Respondent testified that he purchased the computer and his wife purchased a few additional items of little total value, including baby items and candles, because TB was on a fixed income and needed financial help. He testified that often there wasn't any food in the house. According to the Respondent, TB had a number of baby items following a pregnancy that did not go to term. She offered to sell them to the Respondent's wife, because she knew that their babysitter was pregnant. The Respondent denied that he directed the children to shoplift or that he knew the items he purchased had been stolen. He further testified that TB had told him that her ex-husband (Pete) had a warehouse in Illinois where she could obtain items for them at less than retail. According to the Respondent, TB encouraged he and his wife to purchase items from them that she obtained from her ex-husband's warehouse. The Respondent did not know what kind of warehouse it was or its name, and he never asked. The Respondent never noticed the price tags or store names which were on some of the items. The Respondent believes that TB fabricated her allegations against him because he had been recommending that the children may need to be removed from her home, and she would do anything to prevent that from happening. (Testimony of Respondent)

13. TB had been involved with the Iowa Drug Task Force as an informant. In her role as an informant, she had worked under cover and had tape recorded drug users and dealers using a microcassette recorder supplied by the task force. Her role as an informant created some security issues for the family.

At some point in the spring of 1998, TB approached one of the task force officers with her allegations about the Respondent. According to TB, the officer told her to "get proof." In addition, TB reported that she had attempted to tell the judge assigned to her son's case that the Respondent was lying to her. TB reports that the judge indicated that she had no reason to believe TB. After these two events, TB decided to get proof by using her own micro cassette recorder to record the Respondent. (Testimony of TB; State Exhibits B, O)

14. On May 14, 1998, TB went to Wanda Hubbard to retrieve her micro cassette recorder. She had previously given it to Ms. Hubbard to listen to a tape that TB had made of the mother of one of SP's friends. TB told Wanda Hubbard her allegations regarding the Respondent and her plan to tape record him as she made a delivery of stolen items to his house. Ms. Hubbard was shocked by this information and asked TB who was investigating. TB assured

Ms. Hubbard that the county attorney and police department were involved.

That evening, Ms. Hubbard went to TB's home and observed a box of items that TB was preparing to take to the Respondent's house. Ms. Hubbard asked if she could mark the bottom of the items with a red pen. The items included a porcelain art object with a log and eagles or seagulls, dog chewies, dog vitamins and drops, Christmas ornaments, and Precious Moments and Campbell's statutes. Ms. Hubbard followed TB to the Respondent's house and parked down the street. She saw TB, SP and CP approach the Respondent's home with the box. The Respondent answered the door and spoke to them on the porch. Ms. Hubbard heard CP raise her voice and heard the word "schoolwork." The Respondent let them into his home. (Testimony of Wanda Hubbard; State Exhibit I)

15. TB tape recorded her conversation with the Respondent and his wife with the concealed micro cassette recorder. The recording was later transcribed by the Iowa Drug Task Force. Both the tape recording and the transcript were admitted into the record. The tape recording was of poor quality; not all of the conversation is audible. However, the transcript appears to be accurate as to those parts of the conversation that are clearly audible. The tape recording includes discussion of the items brought into the house by TB and negotiation on price. The Board was not persuaded that the tape was altered by TB.

a) On the tape, TB was angry at the Respondent for telling Wanda Hubbard that TB was the problem and that she was unstable. The Respondent replied "Wanda, Wanda, Wanda, Wanda's going nuts."

b) Later, TB and CP are heard to tell the Respondent that they have four candles for Margie; CP states that the large ones are \$10.00. TB is also heard to tell the Respondent that she has one Christmas ornament to show his wife and has the "dog stuff." TB is also heard to tell the Respondent that she will bring his shoes in the morning, and he responds "Alright." TB also states "these are the Winnie the Pooh things." CP and the Respondent are then heard to discuss price. CP says "\$30-you give me at least twenty for it." TB says "Sssh" and the Respondent replies "it ain't worth twenty dollars." CP tells the Respondent to "go to hell" and also states that she could sell it to his f...g neighbors for \$30."

c) Later on the same tape, TB and the Respondent discuss getting the model number from the computer. TB tells the Respondent's wife that she got "four of the dresses" and "a little springy coat." When it is time to leave, CP is very angry because she did not get paid.

(Testimony of TB; State Exhibit Z)

16. The following night, TB, CP and SP returned to the Respondent's house. Once again, TB surreptitiously taped the conversation, and it was transcribed by the Iowa Drug Task Force. The transcript is accurate as to those portions of the tape which are clearly audible. The Board was not persuaded that the tape was altered by TB.

a) On the tape, TB tells the Respondent's wife "we got some of the toys." The Respondent's wife replies "Oh, okay." The Respondent remarks "Oh cool." TB tells the Respondent and his wife that she wants to show them something else. She states, "I wanna show you these. I don't know if you're interested or not." TB further states "Well, they have them like at Spencer's for thirty..but when you buy 'em on the hub... I guess you pay five for them." Later, TB tells the Respondent's wife "They've got every make and model. They have every one of these...In all of the collector years but I didn't know if you were interested or not so I just got two of them. But at Spencer's, they're like thirty bucks apiece; five bucks is what Pete's charging us for."

b) Later TB states "No, you're not telling them this shit's hot and where we got it." The Respondent's wife replies "Oh, no...no.." and TB states "cause I don't want anyone to know. Cause Pete's...you know."

c) TB is heard offering the Respondent a Volvo that she can get "real cheap." The Respondent declines and states "I'm not...I'm not in Florida. If I was in Florida that's different." The Respondent's wife states "We'd be running drugs in Florida wouldn't we Chuck?" The Respondent further states that he had an apartment house and that the barn was stacked full of pot. He tells CP that he lost everything, including close to 4 million dollars that he had under his bed.

d) Both the Respondent and his wife are heard discussing sizes and types of clothing for the children and what type of toys to get. In addition, TB asks the Respondent's wife if she still wants the crystal clock and whether she wants TB to take the numbers off or whether she wants to take them off. The Respondent's wife tells TB "You can." TB also asks the Respondent's wife "...you're not reselling anything?" and she responds, "oh no." TB also asks the Respondent's wife how many cartons of cigarettes she wants. The Respondent's wife replies that she wants a carton for herself and one for Bart and identifies the brands that she wants.

e) TB also tells the Respondent that Pete told her to be sure that the Respondent is not "re-fencing this shit and taking away from his business." The Respondent replied

"Shit...re-fencing it." The Respondent further stated "Did you tell him I can't afford to buy it myself the way my wife spends."

f) The Respondent also states "Hey, good I saw [CB] yesterday. I can bill for it." TB asks "Where?" and the Respondent replies "Right here." The Respondent then states "I saw [CB] today so I can bill for it." TB then tells him "Well, then you'd better say that she's cooperating." TB then states to her daughter, "You're cooperating, aren't ya? [CB]? Just say yes Chuck." CB replied "Yes, Chuck. I'm cooperating."

(Testimony of TB; State Exhibit Y)

17. After reviewing the tapes, the Dubuque Police Department obtained a search warrant for the Respondent's home. The police seized a Winnie the Pooh with Tigger collectible bear in a glass display case from the Respondent's living room, which was one of the items identified by TB as having been sold to them. The Winnie the Pooh had a \$40.00 price tag on the bottom and a red mark, which had been placed there by Wanda Hubbard. The police also seized another Winnie the Pooh figure and a Sail Boat on a Log sculpture. Both of these items had red marks on the bottom. The police also seized the lap top word processor/computer with the serial number sticker missing. Photographs were taken of various other items found throughout the house, including children's forks, sunblock, cigarettes, candles, a cardboard box, an electronic keyboard, a collectible car, and a baby monitor box. (State Exhibits L, M, V)

18. The preponderance of the evidence established that the Respondent and his wife purchased a computer and numerous other items directly from TB and her children for much less than retail value. The preponderance of the evidence also established that the Respondent realized that these items had been stolen.

The tape recordings that were made by TB support the conclusion that both the Respondent and his wife were aware that the items they were purchasing had been stolen. In addition, in his police interview, the Respondent stated: "I'm not naive, she didn't charge us as much for this stuff as it was worth, and I figured it was stolen." Later, the Respondent stated that he thought TB's ex-husband stole the property and just gave it to her.

In later interviews and testimony, the Respondent denied that he knew that the property was stolen, and stated only that he thought it came from TB's ex-husband's warehouse in Illinois. The tapes and the police report of the Respondent's interview, in which he admitted realizing that the goods were stolen, were more credible than the Respondent's later denials. (Testimony of Respondent; State Exhibits B; N; X; Y)

19. The record established the following facts, all of which detracted from the Respondent's credibility:

a) The Respondent failed to reveal his felony conviction on either his application for employment with Alternative Services or on his application for a social work license with this Board. (Testimony of Respondent; State Exhibits GG, HH, UU)

b) The Respondent admitted telling TB details about his drug dealing activity in the state of Florida, but testified that he fabricated this history as a type of self disclosure to gain TB's trust and to "relax" her. One of the tapes also confirms that the Respondent and his wife discussed drug dealing in Florida in front of TB and both of the children. (Testimony of Respondent; TB; State Exhibit Y)

c) The Respondent claimed that he purchased items from TB and the children because they had financial difficulties and he wanted to help them out. However, the Respondent admitted that he never referred the family for any type of financial counseling, nor did he try to assist TB to collect child support, both of which would have been appropriate assistance if the family was experiencing financial difficulty. The Respondent paid the family far less than market value for the items. The Respondent did not document his purchases in his case notes. (Testimony of Respondent)

d) The Respondent testified that he believed TB was fabricating her allegations against him because he had been recommending that the children be removed from the home. However, his case records contain no mention of this recommendation nor any documentation of his reasons for it, both of which would be minimally expected if he had made such a recommendation. In addition, Wanda Hubbard could not recall the Respondent ever recommending removal of the children. (Testimony of Respondent; Wanda Hubbard; State Exhibits C; E)

e) On the second tape recording, the Respondent is heard to joke about his ability to bill because he had seen CB at his home on two consecutive days. It appears to the Board that the Respondent is referring to CB's appearance at his home, with items for him and his wife to purchase, as a billable service. (Testimony of Respondent; State Exhibit Y)

20. The Board also had numerous serious concerns about TB's credibility. As a result of these serious concerns, the Board felt unable to rely solely on her testimony or on the tapes to establish disputed facts.

- a) TB received a deferred judgment for a misdemeanor theft after she received welfare checks in Iowa and Illinois simultaneously.
- b) TB minimized the criminal activities of her children and admitted to assisting them in shoplifting items from stores. TB now faces criminal charges for possession of stolen property and contributing to the delinquency of a minor.
- c) TB never reported the Respondent's activities to his supervisor.
- d) TB claims that all of the shoplifting was done by the children at the direction and insistence of the Respondent. However, the tape recordings that she made support the Respondent's contention that she told him that she got at least some of the items from her ex-husband, Pete. In addition, TB appears to be encouraging the purchase of the items, as well as making suggestions about additional items that she could provide.
- e) There were a number of inconsistencies in the sequence of events related by TB in her various pre-hearing statements and in her testimony at the hearing.

(Testimony of TB; State Exhibits B, H, Y, RR; Respondent Exhibits 1-3)

CONCLUSIONS OF LAW

COUNTS I AND II

Iowa Code section 147.55(3) (1997) provides, in relevant part:

147.55 Grounds.

A license to practice a profession shall be revoked or suspended when the licensee is guilty of any of the following acts or offenses:

...

3. ...engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established.

645 IAC 280.212(3) provides that the board may impose any of the disciplinary sanctions provided in rules 280.211 when the board determines that the licensee is guilty of engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established.

645 IAC 280.213(3)"f" provides that a licensee shall not exercise undue influence on any client/patient or student, including the

promotion of the sales of services, goods, appliances or drugs in a manner that will exploit the client/patient or student, for the financial gain or personal gratification of the licensee or of a third party.

The preponderance of the evidence established that the Respondent violated Iowa Code section 147.55(3), 645 IAC 280.212(3) and 645 IAC 280.213(3) "F", when he repeatedly purchased goods he knew to be stolen from his client and his family. The expert testimony of John Fandrich, LISW, and the professional opinions of Steven Sprengelmeyer and the Respondent all established that it is unethical for a social worker to purchase goods from a client that he knows or even suspects to be stolen.

While the demeanor and inconsistent statements of TB and CP detracted from their general credibility, there is little doubt that the Respondent purchased stolen goods from the family. Their testimony about what items were stolen was extremely detailed and corroborated in large part by the items actually seized by the police and by the statements from the retailers. The reports contained in the police investigation clearly established that numerous stolen items were transferred from TB, SP and CP to the Respondent and his wife in exchange for varying amounts of compensation. The tape recordings include several incriminating statements by both the Respondent and his wife which indicate that they were ordering certain items, negotiating prices, and acknowledging that the items were "hot" or being "fenced." The Board was not persuaded that the tapes had been altered by TB.

The Respondent's testimony that he did not know the items were stolen and that he only wanted to help the family financially were not credible. The Respondent admitted to the investigating police officer that he was not naive and realized the goods were probably stolen because he was not being charged as much as the items were worth. He further stated that he thought that TB's ex-husband, Pete, had stolen the merchandise. This was consistent with the Respondent's testimony to the Board that TB told him the items came from her ex-husband's "warehouse" in Illinois. Although the Respondent denied that he made incriminating statements to the officer, the Board found the very detailed police report, which included quotations from the Respondent, to be more credible than the Respondent's denial.

If the Respondent's motivations had truly been to help the family, he should have taken appropriate professional actions to refer them for financial counseling or assisted them in following the proper procedures to obtain child support which was owed to them. At the very least, he should have discussed his rationale for purchasing the items with his supervisor, documented the purchases in the case notes, and paid the family fair market value for the items. His

failure to do any of these things contradicts his claim that he was trying to help the family.

The preponderance of the evidence failed to establish that the Respondent ordered or directed SP and CP to steal items for him or threatened to have them removed from the home if they failed to do so. However, by purchasing the stolen items provided by the family, the Respondent clearly encouraged this illegal behavior to continue.

The preponderance of the evidence also established that the Respondent violated Iowa Code section 147.55(3), unethical conduct, when he told TB, CP, and SP about his criminal activity and drug dealing in Florida. The Respondent admits that he had told TB that he had been involved in drug dealing in Florida. The statements of the Respondent and his wife on the tape recording also confirm this. The Respondent stated that he made these false self-disclosures because TB had a background in drugs and he needed to "relax her" and "get on her good side" in order to help her son. He compared it to a drug or alcohol counselor self disclosing his own drug use and recovery to a client as part of treatment.

The Respondent's explanations about why he made these statements were not credible. There is no legitimate justification for making a false self-disclosure to a client. Moreover, the Respondent's statements on the tape concerning his illegal activity in Florida were in the nature of bragging and glamorizing the illegal activity, consistent with TB's description of his statements to her. The Respondent was supposed to be serving as a mentor for SP, who had already had many juvenile referrals for antisocial behavior. At the very least, his reckless statements about his past drug dealing, true or not, set a poor example for the family and encouraged the perpetuation of their own criminal activity. At the worst, his statements to them could have been an attempt to intimidate and control the family.

The preponderance of the evidence did not establish that the Respondent made unethical comments to SP, CP, and TB about the other professionals who were providing services to the family. The Respondent did make negative comments about Dr. Routley to Wanda Hubbard. It is unclear, based on the evidence in this record, whether the comments were made directly to TB, CP, or SP.

COUNT III

645 IAC 280.212(14) "b" prohibits practice outside the scope of the social work license. The Respondent was licensed as a bachelor social worker. The state alleged in the Statement of Charges that the Respondent had engaged in the practice of social work as a private practice, in violation of Iowa Code section 154C.1 and 154C.2(1997). The state did not directly address this allegation

in its presentation. Testimony from Steven Sprengelmeyer and a fee schedule and resume prepared by the Respondent suggest that the Respondent had contemplated providing substance abuse assessments under the supervision of Mr. Sprengelmeyer, pursuant to a contract. Based on this limited record, it cannot be concluded that the Respondent practiced social work outside the scope of his license.

ORDER

The ethical violations committed by the Respondent were egregious and indicate that the Respondent lacks the basic moral character and good judgment required of licensed social worker. The Board's first concern must be the protection of the public. Based on a thorough review of the record before it, the Board concludes that the only appropriate sanction is permanent revocation.

IT IS THEREFORE ORDERED, that the bachelor social work license issued to Charles K. Koranda, license no. 304-01248, shall be permanently REVOKED.

Dated this 15th day of December, 1999.


James Yeast, L.M.S.W.
Chairperson
Iowa Board of Social Work Examiners

cc: Heather Adams
Assistant Attorney General

A party who is aggrieved or adversely affected by this final decision may seek judicial review, in accordance with Iowa Code section 17A.19. A petition for judicial review must be filed within thirty days after the issuance of this decision.

STATE OF IOWA
BEFORE THE IOWA BOARD OF SOCIAL WORK EXAMINERS

IN THE MATTER OF:

*

CASE NO: 98-006

*

CHARLES L. KORANDA

*

*

RESPONDENT

*

NOTICE OF HEARING

*

TO THE ABOVE NAMED RESPONDENT:

On the 12th day of December 1998, the Iowa Board of Social Work Examiners concluded that probable cause exists to file a statement of charges and order a hearing in this matter.

IT IS HEREBY ORDERED that a hearing be held upon the Statement of Charges. You are notified that a hearing will be held at 8:30 a.m. on the 22nd day of February 1999 at the Lucas State Office Building, 5th Floor Board Conference Room, 321 E. 12th Street, Des Moines, Iowa.

You may appear personally and be represented by legal counsel at your expense, with the right to produce evidence in your behalf, to examine and cross-examine witnesses and to examine documentary evidence produced against you. If you fail to appear and defend, the hearing will proceed and a decision will be made.

You are hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all pleadings should be served on counsel at the following address:

Heather Adams
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 19th day of January 1999.


Roxanne Sparks, Board Administrator
Iowa Board of Social Work Examiners

BEFORE THE IOWA BOARD OF
SOCIAL WORK EXAMINERS

IN THE MATTER OF:	)	CASE NUMBER: 98-06
	)	
CHARLES L. KORANDA,	)	STATEMENT OF CHARGES
	)	
Respondent.	)	

TO THE ABOVE NAMED RESPONDENT:

The Iowa Board of Social Work Examiners has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154C, and 272C (1997).

Licenses issued by the Board are subject to the laws of the state of Iowa and to the administrative rules of the Board.

Respondent Charles Koranda was at all times during the following events a licensed bachelor social worker. Respondent was issued license number 304-01248 to practice as a bachelor social worker in the state of Iowa on August 6, 1996, as recorded in the permanent records in the office of the Board.

Respondent's current address as reported to the Board is 301 Clarke Drive, Dubuque, Iowa, 52001.

COUNT I

Respondent is charged pursuant to Iowa Code section 147.55(3) and 645 Iowa Administrative Code 280.212(3) with engaging in unethical conduct in the practice of social work.

COUNT II

Respondent is charged pursuant to 645 Iowa Administrative Code 280.213(3)(f) with exercising undue influence on a patient or client.

CIRCUMSTANCES

1. Respondent was an in-home family counselor for patient # 1 and patient # 2, both minors, from 1996 to 1998.

2. On numerous occasions in 1997 and 1998, Respondent encouraged patient # 1 and patient # 2 to shoplift various items, including a computer, computer

batteries, an electronic keyboard, alcohol, cigarettes, various children's items, clothing, cologne, jewelry, and candles.

3. On numerous occasions in 1997 and 1998, Respondent purchased various items from patient # 1 and patient # 2 and their mother, including a computer, computer batteries, an electronic keyboard, alcohol, cigarettes, various children's items, clothing, cologne, jewelry, and candles. Respondent had knowledge that he was purchasing stolen property.

4. On numerous occasions in 1997 and 1998, Respondent threatened the mother of patient # 1 and patient # 2 with removal of her children from her home if she revealed his activities.

5. On numerous occasions in 1997 and 1998, Respondent made unethical comments to patient # 1, patient # 2, and their mother regarding his own alleged illegal activities.

6. On numerous occasions in 1996-1998, Respondent made unethical comments to patient # 1, patient # 2, and their mother regarding other professionals who were providing services to the family.

COUNT III

Respondent is charged pursuant to 645 Iowa Administrative Code 280.212(14)"b" with practicing outside the scope of his license.

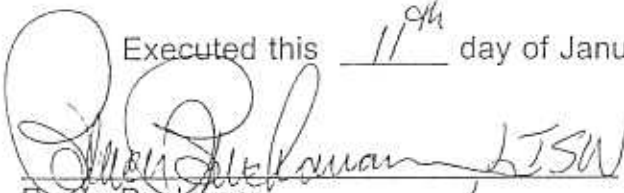
CIRCUMSTANCES

1. Respondent is engaging in the practice of social work as a private practice in violation of Iowa Code sections 154C.1 and 154C.2 (1997).

FINDING OF PROBABLE CAUSE

On January 11, 1999, the Iowa Board of Social Work Examiners found probable cause to file this Statement of Charges and to order that a hearing be set in this case.

Executed this 11th day of January, 1999.


Bruce Buchanan
Iowa Board of Social Work Examiners
Board Chairperson